

15. **The Court will exercise a surveillance where the trustees are before it.** — Where proceedings had been taken for controlling the discretion of the trustees, Lord Hardwicke said, “though he could not contradict the intent of the donor, which was to leave it in the discretion of the trustees, yet he would not dismiss the information but would still *keep a hand over them*” (*h*).

* 16. **After decree trustee cannot exercise even a [*617] special power without the sanction of the Court.** —

Where a suit has been instituted for the administration of the trust, *and a decree has been made, that* attracts the Court’s jurisdiction, and the trustee cannot afterwards exercise the power without the concurrent sanction of the Court: as if a trustee have a power of investment he cannot make any investment without the approval of the Court (*a*); or if a trustee have a power of appointment of new trustees, he is not excluded from the right of nominating the person, but the Court must give its sanction to the choice (*b*); [and if the Court does not approve the nominee of the trustee it will call upon the trustee to make a new nomination, and will not appoint a person not nominated by the trustee merely on the ground that the nominee was not approved. Nor will the Court appoint a person not nominated by the trustee on the mere ground of such person being more eligible than the nominee of the trustee (*c*).

Effect of Order 55. — Where an action was commenced by suit for the general execution of the trusts of a will, and an order was made under Ord. 55, R. 3, directing certain inquiries, including an inquiry whether new trustees had been appointed, and whether any and what steps ought to be taken for the appointment of new trustees, and pending the inquiry the surviving trustee appointed a new trustee

(*h*) *Attorney-General v. Governors of Harrow School*, 2 Ves. 551.

(*a*) *Bethell v. Abraham*, 17 L. R. Eq. 24.

(*b*) *Webb v. Earl of Shaftesbury*, 7 Ves. 480; — *v. Robarts*, 1 J. & W. 251; *Middleton v. Reay*, 7 Hare, 106; *Kennedy v. Turnley*, 6 Ir. Eq. Rep. 390; *Consterdine v. Consterdine*,

31 Beav. 333; *Gray v. Gray*, 13 Ir. Ch. Rep. 404; [*Minors v. Battison*, 1 App. Cas. 428; *Tempest v. Lord Camoys*, 21 Ch. D. 571; *Re Norris*, 27 Ch. D. 333; *Cecil v. Langdon*, 28 Ch. D. 1; *Re Hall*, 51 L. T. N. S. 901.]

[(*c*) *Re Gadd*, 23 Ch. D. 134, and see *Middleton v. Reay*, *ubi supra*.]